

did not possess at the passing of this Measure, or affect of Board of
any jurisdiction over any charity or endowment vested Education
in the Board of Education. affected.

4. This Measure may be cited as the Ecclesiastical Short title.
Commissioners (Loans for Church Training Colleges)
Measure, 1931.

21 & 22 GEO. 5.

No. 3.

A MEASURE passed by the National Assembly
of the Church of England.

To regulate the exercise of rights of presentation
to benefices. [8th July 1931.]

1. A vacancy or impending vacancy in a benefice shall be notified by the bishop to the patron and the parochial church council. Notifica-
tion of
vacancies.

2.—(1) When a vacancy or impending vacancy has been notified to a parochial church council under this Measure, such parochial church council may make representations in writing to the patron as to the conditions, needs and traditions of the parish, but without mentioning the name of any particular clerk. Representa-
tions.

(2) A copy of any representations made under this section shall be sent to the bishop unless the bishop is himself the patron.

3.—(1) A patron shall be entitled to exercise his right of presenting or collating to a vacant benefice in the same manner as if this Measure had not been passed, unless the parochial church council within thirty days after the vacancy or impending vacancy has been notified under this Measure shall pass a resolution (which shall forthwith be notified by the council to the bishop and the patron) that the provisions herein-after in this section contained shall have effect. Exercise of
rights of
presenta-
tion and
collation.

(2) If in respect of any vacancy such a resolution shall be passed within the period aforesaid, the following provisions shall have effect (that is to say) :—

- (i) The patron shall be entitled to exercise his right of presentation after conferring either personally or through a representative with and obtaining the consent of the churchwardens acting as the representatives of the parochial church council;
- (ii) In any case where a period of sixty days has elapsed after the vacancy or impending vacancy has been notified under this Measure and

(a) after a conference with the churchwardens under this section, the churchwardens have not given their consent, or

(b) such conference has for any reason other than the neglect or refusal of the patron not taken place,

the patron shall be entitled to exercise his right of presentation after obtaining the bishop's approval of the clerk presented as being suitable for the duties attaching to the cure of souls in the particular benefice concerned :

Provided that—

- (a) The bishop before giving or withholding his approval may, and shall, if the patron or parochial church council so requires, consult the body of advisers established by this Measure;
- (b) If the bishop finally withholds his approval, the patron may bring his decision before the archbishop for review, and may lawfully present the clerk concerned if the archbishop shall authorise such presentation;
- (iii) A presentation shall not be valid unless made with such consent or approval or authorisation as is required by the foregoing paragraphs of this subsection;
- (iv) If the bishop is the patron, he shall before collating any clerk consult the churchwardens acting as the representatives of the parochial church council and also if he shall deem it

expedient or if the churchwardens shall so require, the body of advisers established by this Measure;

- (v) The last preceding paragraph shall also apply where the patronage of a vacant benefice has lapsed to a bishop or archbishop.

4.—(1) A body of advisers for the purposes of this Advisers.
Measure shall in every diocese consist of—

- (i) three clerks in Holy Orders elected triennially by the Chamber of Clergy of the Diocesan Conference;
- (ii) four laymen elected triennially by the Chamber of Laity of the Diocesan Conference; and
- (iii) the archdeacon, who shall be the chairman with power to call meetings and otherwise regulate the procedure of the body.

(2) The Diocesan Conference shall have power—

- (i) to fix a quorum for a body of advisers and to make provision with respect to casual vacancies;
- (ii) to make provision for a separate body of advisers for each archdeaconry in the diocese and to determine the manner of the election of the elected members of such body.

(3) A member of a body of advisers who is interested as sole patron of a benefice or as a clerk whose presentation to a benefice is proposed shall not take any part in advising the bishop under this Measure with reference to such benefice, and, where the archdeacon is so interested, his powers and duties under this section shall devolve upon such other member of the body of advisers as the bishop may select.

5. The period between the occurrence of a vacancy Lapse.
in a benefice and the notification thereof under this Measure and any period during which the decision of a bishop withholding approval under this Measure is under review by an archbishop shall respectively not be reckoned for purposes of lapse.

6. Nothing in this Measure shall affect the existing Institution.
law relating to institution.

Crown
patronage.

7. Nothing in this Measure shall apply to rights of presentation vested in or exercised by His Majesty, whether in right of his Crown, or of his Duchy of Lancaster, or to rights of presentation vested in or exercised by His Majesty or by the Duke of Cornwall, as the possessor for the time being of the Duchy of Cornwall, or to rights of presentation exercised by the Admiralty in respect of benefices the patronage of which belongs to Greenwich Hospital.

Notification,
&c., to
patron.

8. Any notification or other communication to be given or made to a patron under this Measure shall be deemed to have been duly given or made if sent by post addressed to the patron at his last known place of abode or business in the United Kingdom, or, if there is no such place or the same is unknown, such notification or other communication may be given or made by advertisement in a newspaper circulating in the neighbourhood of the benefice concerned.

Interpre-
tation.

9. In this Measure—

the expression “impending vacancy” shall mean only such a vacancy as the bishop considers must necessarily occur within such a period that in his opinion it is reasonable to notify it under this Measure;

the expression “presentation” includes nomination and any other manner of filling vacant benefices other than collation, and the word “present” shall be construed accordingly;

the expression “the patron” with reference to any benefice means the person or persons for the time being entitled otherwise than by lapse to present or collate to such benefice upon a vacancy;

the expressions “the bishop,” “the archdeacon” and “the archbishop” when used with reference to a benefice mean respectively the bishop (including, during the vacancy in a see, the guardian of the spiritualities) the archdeacon and the archbishop in whose diocese, archdeaconry and province the benefice is situate, except that where the bishop of such diocese is an archbishop

the expression “the archbishop” shall mean the archbishop of the other province; and

the expression “Diocesan Conference” means the Diocesan Conference of the diocese in which the benefice concerned is situate.

10.—(1) Subject to the provisions of this section, this Measure shall come into operation on the appointed day. Commence-
ment.

(2) The appointed day shall be such day not later than twelve months after the passing of this Measure as the Archbishops of Canterbury and York may determine.

(3) The determination by the Archbishops of Canterbury and York of the appointed day shall be notified by advertisement in the London Gazette.

(4) The provisions of this Measure providing for the constitution of bodies of advisers shall come into operation on the passing of this Measure.

11. This Measure may be cited as the Benefices Short title.
(Exercise of Rights of Presentation) Measure, 1931.

12. This Measure shall apply to the whole of the Extent.
Provinces of Canterbury and York except the Channel Islands and the Isle of Man.

No. 4.

A MEASURE passed by the National Assembly
of the Church of England.

To make further provision for the application to the Channel Islands of Measures passed by the Church Assembly. [8th July 1931.]

1. In this Measure—

The expression “the Islands” means (a) the Island of Jersey; and (b) the Island and Bailiwick of Guernsey and its dependencies; and references to each or either of the Islands shall be construed accordingly;

Interpre-
tation.